

STATE OF NEW YORK

9341--A

IN SENATE

March 3, 2026

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to penalties for a lodging facility that fails to comply with certain requirements for providing information concerning services for human trafficking victims

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 206-f of the general business law is amended by
2 adding a new subdivision 3 to read as follows:

3 3. (a) Any lodging facility that fails to comply with the requirements
4 of this section shall be liable for a civil penalty of five hundred
5 dollars for a first offense and one thousand dollars for each subsequent
6 offense. To recover any civil penalties assessed pursuant to this
7 section against a lodging facility, a local or state agency with author-
8 ity to regulate the business shall:

9 (i) provide the lodging facility with reasonable notice of noncompli-
10 ance, which informs the business or establishment that it is subject to
11 a civil penalty if it does not correct the violation within thirty days
12 from the date that the notice is sent to the lodging facility; and

13 (ii) verify that the violation was not corrected within the thirty-day
14 period described in subparagraph (i) of this paragraph.

15 (b) The provisions of this subdivision shall be enforced concurrently
16 by the director or commissioner of a municipal consumer affairs office,
17 or by the town attorney, city corporation counsel, or other lawful
18 designee of a municipality or local government, and all moneys collected
19 thereunder shall be retained by such municipality or local government.

20 § 2. This act shall take effect on the thirtieth day after it shall
21 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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